

## 26STCV03099 26STCV03099

County: los-angeles

Division: Civil Law and Motion

Department: 507

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Case Number: 26STCV03099 Hearing Date: July 8, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 8, 2026 TRIAL DATE: NOT SET

CASE: Golden Boy Promotions, LLC v. Rick  
Mirigian

CASE

NO.: 26STCV03099

MOTION TO COMPEL ARBITRATION

MOVING

PARTY: Defendant Rick Mirigian

RESPONDING

PARTY(S): Plaintiff

Golden Boy Productions, LLC ("GBP")

TENTATIVE RULING:

Mirigian's

Motion to Compel Arbitration is GRANTED.

The

Court sets a Status Conference Re: Arbitration for Monday, June 21, 2027 at 8:30 A.M.

Moving Party to give notice.

## BACKGROUND

This

is an action for interference with contract. GBP alleges that Mirigian, as manager for professional boxer Vergil Ortiz, Jr., sabotaged GBP's promotional agreement with Ortiz to benefit himself.

## DISCUSSION:

Mirigian moves to compel arbitration

based on an arbitration clause in the Promotional Rights Agreement between GBP and Ortiz. The Court grants the motion under an equitable estoppel theory. Although Mirigian is not a party to the Promotional Agreement, GBP's claims against Mirigian are premised on specific rights granted to it, which entitles Mirigian to arbitration as a matter of equity.

Existence

of Arbitration Agreement

Mirigian contends that he is a party

to a valid arbitration agreement between himself and GBP. He is not.

Under

California law, arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract. (Blake v. Ecker (2001) 93

Cal.App.4th 728, 741 (overruled on other

grounds by Le Francois v. Goel (2005) 35 Cal.4th 1094).) A party

petitioning to compel arbitration has the burden of establishing the existence

of a valid agreement to arbitrate, and the party opposing the petition has the

burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (Banner Entertainment, Inc.

v. Superior Court (1998) 62 Cal.App.4th 348, 356-57.)

As

to the burden of production, rather than persuasion, courts have articulated a three-step burden shifting process:

First, the moving party bears the burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." [citation] The moving party "can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." [citation] Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion. [citations] For this step, "it is not necessary to follow the normal procedures of document authentication." [citation] If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.

If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [citation] The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. [citations]

If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party. [citation].

(Gamboa  
v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165-66.)

Mirigian has furnished a copy of the Promotional Rights Agreement between GPB and Ortiz. (Declaration of Rick Mirigian ISO Mot. Exh. A.) Section 12 of the Agreement contains an arbitration clause which states:

Other than issues related to

each Bout, which will be controlled by the rules of the applicable Commission, this Agreement will be governed and construed in accordance with the laws of the State of Nevada applicable to agreements entered into and who11y perform1ed therein. Any dispute, controversy or claim arising out of or relating to this Agreement, including the formation, interpretation, breach, or termination thereof: including whether the claims asserted are arbitrable, will be referred to and finally determined by arbitration in accordance with the JAMS Commercial Arbitration Rules before a single arbitrator who shall be selected by the parties to the arbitration and who shall be a retired judge or justice. If the parties are unable to select an arbitrator, the arbitrator will be selected in accordance with the JAMS Rules. The place of arbitration will be Las Vegas, Nevada. Judgment upon the award rendered by the arbitrator(s) may be entered in any court having jurisdiction thereof: The prevailing Party in arbitration shall be entitled to its reasonable costs, including the costs of arbitration, and attorneys' fees.

Although

the Agreement bears Mirigian's signature and names him as a "Manager," there is no other specific reference to Mirigian either by name or title in the Agreement. (See Id.) In contrast, the Agreement specifies that only GBP and Ortiz, as "Promoter" and "Boxer" respectively, "are each a "Party" to the agreement and together are the "Parties." (Id. at p.1.) Mirigian nonetheless asserts that he is a party to the Promotional Rights Agreement between GBP and Ortiz based on his identification in the preamble, his signature, and various references to "Boxer's representatives and affiliates." (See, e.g., Exh. A. p. 12 at § 13.) This argument is specious. The plain language of the contract identifies GBP and Ortiz alone as the parties to the agreement. Generalized references to Ortiz's "representatives" with respect to Ortiz's rights and obligations are binding on Ortiz, and do not confer the status of party onto Mirigian.

Mirigian is not a party to the Promotional Rights Agreement. He is therefore not entitled to compel arbitration on that basis.

Equitable

Estoppel

Mirigian argues in the alternative

that he is entitled to compel arbitration under an equitable estoppel theory. This contention is much more persuasive. GBP's Complaint against Mirigian is facially premised on enumerated rights and obligations in the Promotional Rights Agreement. Well-settled precedent entitles Mirigian to arbitration in equity.

The doctrine of equitable estoppel applies if (1) the plaintiff relies upon the contract's terms in asserting claims against the non-signatory defendant, or those claims are "intimately founded in or intertwined with" the contract itself, or (2) if the plaintiff alleges "substantially interdependent and concerted misconduct" by the defendant, where such allegations of misconduct are "founded in or intimately connected with" the obligations of the contract. (Goldman v. KPMG LLP (2009) 173 Cal.App.4th 209, 221.) The rule allowing a nonsignatory to enforce an arbitration agreement on equitable estoppel grounds is based on the principle that a party should be precluded "from asserting rights "he otherwise would have had against another" when his own conduct renders assertion of those rights contrary to equity." (Metalclad Corp. v. Ventana Environmental Organizational Partnership (2003) 109 Cal.App.4th 1705, 1713 [Citations omitted].)

Here, the Complaint plainly relies on the terms of the Promotional Agreement in asserting claims against Mirigian. Paragraph 11 of the Complaint alleges that the Promotional Agreement granted GBP exclusive promotional rights for Ortiz's boxing and the exclusive right to negotiate all of Ortiz's matches. (Complaint ¶ 11.) Ortiz's representatives were required to forward any inquiries to GBP for negotiation and could only participate in negotiations with GBP's express permission. (Id.) GBP alleges that Mirigian ignored these terms to negotiate promotional deals for Ortiz with third parties to advance Mirigian's own standing and reputation. (Complaint ¶¶ 16-17, 27.) GBP's assertion that the claims are "based on Mirigian's conduct as an outsider to the Promotional Agreement" (Opposition p.9:5-6) miss the forest for the trees. Contrary to GBP's claims, this is not a scenario where the existence of a contract is a background fact, as was the case in Goldman. (See 173 Cal.App.4th at 231.) Rather, GBP's claims rely upon the Promotional Agreement's terms to impose liability. Mirigian is therefore entitled to compel arbitration on equitable estoppel grounds.

Requests for Judicial Notice

Mirigian

requests that the Court take judicial notice of certain filings in the United States District Court District of Nevada in an action between Ortiz and GBP. These filings are not material to the Court's ruling, and so the request is DENIED. (Gbur v. Cohen (1979) 93 Cal.App.3d 296, 301 ("[J]udicial notice . . . is always confined to those matters which are relevant to the issue at hand."].)

CONCLUSION:

Accordingly, Mirigian's Motion to Compel Arbitration is GRANTED.

The

Court sets a Status Conference Re: Arbitration for Monday, June 21, 2027 at 8:30 A.M.

Moving Party to give notice.

IT IS SO ORDERED.

Dated: July 8, 2026 \_\_\_\_\_

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at [email protected] by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.